

1 ENGROSSED HOUSE
2 BILL NO. 2975

By: Hardin of the House

3 and

4 Woods of the Senate
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7 An Act relating to agriculture; amending 2 O.S. 2021,
8 Section 10-9.7, as last amended by Section 2, Chapter
9 372, O.S.L. 2024 (2 O.S. Supp. 2025, Section 10-9.7),
10 which relates to nutrient management plans; expanding
11 certain statements that must be made in an amendment
12 to a nutrient management plan; modifying required
content of certain annual reports; and providing an
effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 2 O.S. 2021, Section 10-9.7, as
15 last amended by Section 2, Chapter 372, O.S.L. 2024 (2 O.S. Supp.
16 2025, Section 10-9.7), is amended to read as follows:

17 Section 10-9.7. A. All poultry feeding operations shall
18 utilize Best Management Practices and shall meet the conditions and
19 requirements established by subsection B of this section and by
20 rules promulgated by the State Board of Agriculture pursuant to the
21 Oklahoma Registered Poultry Feeding Operations Act. Compliance with
22 a Nutrient Management Plan developed under subsections B and C of
23 this section shall be deemed compliant with Best Management
24 Practices.

1 B. Best Management Practices shall be promulgated by rules by
2 the Board and shall include, but not be limited to, the following
3 when developing Nutrient Management Plans:

4 1. Measures designed to prevent the discharge of poultry waste
5 to waters of the state;

6 2. Measures requiring stored poultry waste shall be isolated
7 from outside surface drainage by covers, ditches, dikes, berms,
8 terraces, or other such structures;

9 3. Measures designed to prevent waters of the state from coming
10 into direct contact with the poultry confined on the poultry feeding
11 operation; and

12 4. Measures designed to ensure that poultry waste handling,
13 treatment, management, and removal shall:

14 a. not create an environmental or a public health hazard,

15 b. not result in the contamination of waters of the
16 state, and

17 c. conform to such other handling, treatment, and
18 management and removal requirements deemed necessary
19 by the Oklahoma Department of Agriculture, Food, and
20 Forestry to implement the Oklahoma Registered Poultry
21 Feeding Operations Act and rules promulgated pursuant
22 thereto.

23 The rules promulgated by the Board pursuant to this section
24 shall provide for exceptions to the storage requirements for poultry

1 waste in emergency situations. Such exceptions shall include, but
2 not be limited to, allowing a contract poultry grower to take such
3 actions as are necessary to meet requirements imposed on a grower by
4 an integrator. In such situations, growers shall be required to
5 take all actions feasible to prevent pollution from stored poultry
6 waste.

7 C. Every poultry feeding operation shall have a Nutrient
8 Management Plan which shall include at a minimum:

9 1. A description of poultry waste handling procedures and
10 availability of equipment and type of equipment to be used;

11 2. The calculations and assumptions used for determining land-
12 application rates if land application is applicable;

13 3. All nutrient analysis data for soil and poultry waste
14 testing;

15 4. Legal description and latitude and longitude of lands to be
16 used by an operation for land application;

17 5. Land-application rates of poultry waste shall be based on
18 the available nitrogen and phosphorous content of the poultry waste
19 and shall provide controls for runoff and erosion as appropriate for
20 site conditions;

21 6. The procedures documented in the Nutrient Management Plan
22 shall ensure that the handling and utilization of poultry waste
23 complies with the following requirements:
24

- a. adequate poultry waste storage shall be provided consistent with rules promulgated by the Oklahoma Department of Agriculture, Food, and Forestry pursuant to subsection B of this section,
- b. poultry waste shall not be applied to land when the ground is saturated or during rainfall events. Poultry waste shall not be applied to land when the ground is frozen except in conformance with the Nutrient Management Plan,
- c. poultry waste shall only be applied to suitable land at appropriate times and rates. Discharge or runoff of waste from the application site is evidence that the Nutrient Management Plan requires revisions. Timing and rate of applications shall be based on assimilation capacity of the soil profile, assuming usual nutrient losses, expected precipitation, and soil conditions, and
- d. poultry waste application shall be prohibited on land subject to excessive erosion;

7. Records shall be maintained of all poultry wastes applied on land owned or controlled by the operator, and sold or given to other persons:

- a. if the poultry waste is sold or given to other persons for land application or other use, the poultry feeding

1 operation shall maintain a log of date of removal from
2 the poultry feeding operation, name of recipient the
3 poultry waste is sold or given to, and amount in wet
4 tons, dry tons or cubic yards of poultry waste removed
5 from the poultry feeding operation, and

6 b. the poultry feeding operation shall make available to
7 the recipient any nutrient sample analysis of the
8 poultry waste from that year;

9 8. Any analysis required by the provisions of the Oklahoma
10 Registered Poultry Feeding Operations Act or rules promulgated
11 thereto shall be performed by a qualified environmental testing
12 laboratory certified by the Department of Environmental Quality and
13 approved by the Oklahoma Department of Agriculture, Food, and
14 Forestry; and

15 9. Such other information deemed necessary by the Oklahoma
16 Department of Agriculture, Food, and Forestry to administer the
17 provisions of the Oklahoma Registered Poultry Feeding Operations Act
18 and rules promulgated pursuant thereto.

19 D. 1. The Nutrient Management Plan for new or expanding
20 poultry feeding operations submitted after July 1, 1998, shall be
21 prepared by the operator or designee of the operator.

22 2. After the plan is submitted to the Oklahoma Department of
23 Agriculture, Food, and Forestry for review and approval if the
24 Department determines that a submitted plan needs or requires any

1 corrections or modifications, the Department shall return the
2 Nutrient Management Plan to the operator for corrections.

3 3. For a renewal, if the Department determines the Nutrient
4 Management Plan needs or requires corrections or modifications, the
5 Department shall make appropriate corrections, approve the plan, and
6 notify the poultry feeding operation of the modifications.

7 E. 1. Except as otherwise provided in this subsection, a
8 Nutrient Management Plan for every poultry feeding operation shall
9 be renewed and an updated plan shall be submitted to the Oklahoma
10 Department of Agriculture, Food, and Forestry every six (6) years
11 from the date the initial or previous plan was submitted.

12 2. The operator shall have the option to submit the renewed or
13 updated plan through the Department's website or a printable online
14 form designed by the Department.

15 3. A current operator may submit a one-page amendment to the
16 most recently submitted plan in lieu of a renewal plan through the
17 Department's website, if applicable. Poultry feeding operations
18 submitting an amendment pursuant to this subsection shall still be
19 subject to the soil and poultry waste testing requirements under
20 subsections F and G of this section. The amendment shall contain
21 the following statements:

22 a. no changes in the Department's promulgated standards
23 for land application of poultry waste have occurred
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1 since the most recently submitted Nutrient Management
2 Plan,

3 b. there has been no change to the number of poultry
4 housed since the most recently submitted Nutrient
5 Management Plan,

6 c. there has been no expansion in the poultry feeding
7 operation since the most recently submitted Nutrient
8 Management Plan, and

9 d. the entirety of the poultry waste is:

10 (1) removed off-site as provided in the poultry
11 feeding operation's annual report, as required by
12 subsection J of this section, and will continue
13 to be removed off-site for the next six (6)
14 years, ~~or~~

15 (2) land-applied and will continue to be land-applied
16 for the next six (6) years, or

17 (3) removed off-site and land-applied and will
18 continue with both for the next six (6) years.

19 F. Every poultry feeding operation located in a non-nutrient-
20 limited watershed and non-nutrient-vulnerable groundwaters shall
21 perform soil testing on each land-application area and poultry waste
22 testing at least once every three (3) years to determine:

23 1. Soil pH and plant-available nutrients including, at a
24 minimum, nitrogen, phosphorous, and potassium;

2. Poultry waste nutrient concentrations and moisture; and

3. Application rate based upon the Department's standards for land application for poultry waste as promulgated by rules.

G. Every poultry feeding operation located in a nutrient-limited watershed and nutrient-vulnerable groundwater shall perform an annual soil test on each land-application area prior to the first application of the calendar year. Poultry waste testing shall be performed annually prior to the first application of the calendar year. Soil and poultry waste testing shall be performed to determine:

1. Soil pH and plant-available nutrients including at least nitrogen, phosphorous, and potassium;

2. Poultry waste nutrient concentrations and moisture; and

3. Application rate based upon the Department's standards for land application of poultry waste as promulgated by rules.

H. 1. Soil and poultry waste analysis data shall be retained by the poultry feeding operation for a minimum of six (6) years.

2. All soil and poultry waste analysis data shall be dated prior to land application.

I. 1. Poultry feeding operations shall develop a plan for the disposal of carcasses associated with normal mortality.

2. In the event there is an outbreak of a major disease or other emergency resulting in deaths significantly higher than normal mortality rates, the Oklahoma Department of Agriculture, Food, and

1 Forestry may approve, in writing, an alternate method of disposal of
2 carcasses or the storage of poultry waste during the emergency
3 period.

4 J. Every poultry feeding operation shall file by September 1 of
5 each year an annual report with the Department regarding all poultry
6 waste removed from or land-applied by the facility for the period
7 from July 1 of the previous year through June 30 of that year. The
8 report shall contain the following information:

9 1. The date and amount of poultry waste removed from or land-
10 applied at the facility;

11 2. The type of poultry waste removed or land-applied, whether a
12 cake out, full clean out, in-house windrow or compost, poultry waste
13 stack shed, or other type;

14 3. The county and, if applicable, the name of the nutrient-
15 limited watershed where the poultry waste was produced; and

16 4. The location where the poultry waste is removed to:

17 a. if land-applied on-site, provide the following:

18 (1) the date of the land application,

19 (2) the total amount of poultry waste land-applied in
20 wet tons, dry tons, or cubic yards,

21 (3) the name, mailing address, and telephone number
22 of the poultry waste applicator, and
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1 (4) the number of acres under the control of the
2 poultry feeding operation for land application of
3 poultry waste, or

4 b. if removed off-site, provide the following:

5 (1) the date of the removal off-site,

6 (2) the amount of poultry waste removed in wet tons,
7 dry tons, or cubic yards,

8 (3) the name, mailing address, and telephone number
9 of the person the poultry waste is sold or
10 transferred to, and

11 (4) the name, mailing address, telephone number, and
12 poultry waste applicator license number of the
13 poultry waste applicator, if known, ~~and~~

14 ~~(5) the name, mailing address, and telephone number~~
15 ~~of the hauler of the poultry waste.~~

16 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the House of Representatives the 9th day of March, 2026.

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3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

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9 Presiding Officer of the Senate